



DEPARTMENT OF AGRICULTURE

State Board of Stock Inspection Commissioners

RULES PERTAINING TO THE PUBLICATION AND SALE OF ABANDONED BRANDS

8 CCR 1205-5

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

STATEMENT OF BASIS AND PURPOSE

These rules are adopted pursuant to § 35-43-115.5, HB 98-1101 pertaining to abandoned brands.

The purposes of these rules are to establish procedures for the publication and sale of abandoned brands.

Part 1.00 Definitions.

A. "Board" means the Colorado State Board of Stock Inspection Commissioners.

Part 2.00 Abandoned brands - general provisions.

- A. No abandoned brand which is a duplicate of a brand on record may be sold. Such duplicate, abandoned brand shall be canceled from the registry at the expiration of five years, as set forth in § 35-43-115.5(1), HB 98-1101.
- B. When any abandoned brand is offered for sale by the Board, the Board shall specify which counties of range the brand is authorized for use.
- C. The use of any abandoned brand sold by the Board in an area of the state in which the brand has not been authorized for use is at the purchaser's own risk.
- D. Any abandoned brand sold by the Board shall be considered a new brand registry in the Board's records. Any brand sold as an abandoned brand is subject to the provisions of § 35-43-105(2), C.R.S. and may be discontinued or canceled by a ruling of the Board upon a complaint by an existing brand owner in the same range or locality.

Part 3.00 Publication.

- A. The Board shall publish a list of brands for sale at least thirty (30) days prior to the actual sale. The published notice shall state the time and place for such sale and specify the minimum bid.
- B. The Board shall publish this notice of sale in the official state livestock paper, as designated pursuant to § 35-44-109, C.R.S.

Part 4.00 Sale procedures.

- A. As to any brand advertised for sale as abandoned based upon assessments prior to the 1997 assessment, the last legal owner or the owner's heirs have the first right of refusal upon payment of all back assessments and fees. In order to exercise this right, the last legal owner or the owner's heirs must reinstate the abandoned brand and pay all applicable fees at least seven (7) days prior to the advertised sale date.

- B. Any abandoned brand sold by the Board may be sold by public auction, sealed bid or at a flat-rate minimum, at the discretion of the Board.
- C. The minimum bid for any abandoned brand offered for sale by the Board shall not be less than the current assessment fee and the recording fee authorized by the Board. The Board may also impose a research and sales fee to be added to the minimum bid.
- D. Any person purchasing an abandoned brand offered for sale by the Board shall provide payment in full at the time of purchase.
- E. If a check offered as payment of an abandoned brand is not honored upon presentation to the issuing bank for full payment, the brand purchased shall be forfeited and the brand shall be sold at the next published sale.
- F. All costs associated with the sale of an abandoned brand shall paid to the Board from the net proceeds of the sale, as required by § 35-43-115.5(4), HB 98-1101.

Editor's Notes

History